

HOUSE BILL 442

By Hulsey

AN ACT to amend Tennessee Code Annotated, Section 39-16-301 and Title 55, relative to antique emergency vehicles.

BE IT ENACTED BY THE GENERAL ASSEMBLY OF THE STATE OF TENNESSEE:

SECTION 1. Tennessee Code Annotated, Section 55-4-111(b), is amended by adding the following as a new subdivision:

(6) Notwithstanding subdivision (b)(1), if the antique motor vehicle is an antique emergency vehicle, then the vehicle may also be used for participation in, or transportation to and from, community or educational events, including displays at fairs, festivals, and schools. For purposes of this subdivision (b)(6), "antique emergency vehicle" means an ambulance, fire department vehicle, or law enforcement vehicle that meets the criteria of an antique motor vehicle.

SECTION 2. Tennessee Code Annotated, Section 55-9-402, is amended by adding the following as a new subsection (h) and redesignating the existing subsection accordingly:

(1) The prohibitions in subdivision (b)(1) and subsection (d) regarding the installation of emergency flashing lights do not apply to a privately owned antique emergency vehicle registered under § 55-4-111; provided, that the lights are representative of the era when the antique emergency vehicle was manufactured.

(2) A person shall not operate or illuminate red, white, or blue lights, in any combination, that are steady-burning or flashing and installed on an antique emergency vehicle except in accordance with this subsection (h).

(3) A person may operate or illuminate red, white, or blue lights, in any combination, that are steady-burning or flashing and installed on an antique emergency

vehicle if the lights are representative of the era when the antique emergency vehicle was manufactured and:

(A) The person has been authorized to do so in writing by the chief of the local law enforcement agency or fire department, as applicable to the type of antique emergency vehicle being operated in the jurisdiction;

(B) The person maintains a copy of the written authorization in their possession and provides it to a law enforcement officer upon request; and

(C)

(i) The lights are operated or illuminated while the vehicle is stationary and on public property at a community or educational event, including while the vehicle is being used as a display at a fair, festival, or school;

(ii) The lights are operated or illuminated while the vehicle is on a public road, in motion or stationary, when the vehicle is being used as part of an organized parade, procession, or other ceremonial event; or

(iii) The lights are operated or illuminated while the vehicle is on private property, in motion or stationary, and the person has permission from the property owner to operate or illuminate the lights.

(4) For purposes of this subsection (h), "antique emergency vehicle" means an ambulance, fire department vehicle, or law enforcement vehicle that meets the criteria of an antique motor vehicle, as defined in § 55-4-111(b).

SECTION 3. Tennessee Code Annotated, Section 55-9-201, is amended by adding the following as a new subsection (e) and redesignating the existing subsection accordingly:

(1) The prohibition in subsection (a) does not apply to a privately owned antique emergency vehicle registered under § 55-4-111; provided, that any equipped bell, siren,

or exhaust whistle is representative of the era when the antique emergency vehicle was manufactured.

(2) A person shall not operate a bell, siren, or exhaust whistle installed on a privately owned antique emergency vehicle except in accordance with this subsection (e).

(3) A person may operate a bell, siren, or exhaust whistle installed on an antique emergency vehicle if the bell, siren, or exhaust whistle is representative of the era when the antique emergency vehicle was manufactured and:

(A) The person has been authorized to do so in writing by the chief of the local law enforcement agency or fire department, as applicable to the type of antique emergency vehicle being operated in the jurisdiction;

(B) The person maintains a copy of the written authorization in their possession and provides it to a law enforcement officer upon request; and

(C)

(i) The bell, siren, or exhaust whistle is operated while the vehicle is stationary and on public property at a community or educational event, including while the vehicle is being used as a display at a fair, festival, or school;

(ii) The bell, siren, or exhaust whistle is operated while the vehicle is on a public road, in motion or stationary, when the vehicle is being used as part of an organized parade, procession, or other ceremonial event; or

(iii) The bell, siren, or exhaust whistle is operated while the vehicle is on private property, in motion or stationary, and the person has permission from the property owner to operate the bell, siren, or exhaust whistle.

(4) For purposes of this subsection (e), "antique emergency vehicle" means an ambulance, fire department vehicle, or law enforcement vehicle that meets the criteria of an antique motor vehicle, as defined in § 55-4-111(b).

SECTION 4. Tennessee Code Annotated, Section 55-9-414, is amended by adding the following as a new subsection (g):

(1) The prohibition in subsection (a) regarding the installation or maintenance of blue flashing emergency lights or blue flashing emergency lights in combination with red flashing emergency lights does not apply to a privately owned antique emergency vehicle registered under § 55-4-111; provided, that the lights are representative of the era when the antique emergency vehicle was manufactured.

(2) A person shall not operate or illuminate blue flashing emergency lights or blue flashing emergency lights in combination with red flashing emergency lights that are installed on a privately owned antique emergency vehicle except in accordance with this subsection (g).

(3) A person may operate or illuminate blue flashing emergency lights or blue flashing emergency lights in combination with red flashing emergency lights that are installed on an antique emergency vehicle if the lights are representative of the era when the antique emergency vehicle was manufactured and:

(A) The person has been authorized to do so in writing by the chief of the local law enforcement agency where the vehicle is being operated;

(B) The person maintains a copy of the written authorization in their possession and provides it to a law enforcement officer upon request; and

(C)

(i) The lights are operated or illuminated while the vehicle is stationary and on public property at a community or educational event,

including while the vehicle is being used as a display at a fair, festival, or school;

(ii) The lights are operated or illuminated while the vehicle is on a public road, in motion or stationary, when the vehicle is being used as part of an organized parade, procession, or other ceremonial event; or

(iii) The lights are operated or illuminated while the vehicle is on private property, in motion or stationary, and the person has permission from the property owner to operate or illuminate the lights.

(4) For purposes of this subsection (g), "antique emergency vehicle" means a law enforcement vehicle that meets the criteria of an antique motor vehicle, as defined in § 55-4-111(b).

SECTION 5. Tennessee Code Annotated, Section 39-16-301(b), is amended by redesignating the existing language as subdivision (1) and adding the following as a new subdivision (2):

A person does not commit criminal impersonation under this subsection (b) solely for operating an antique emergency vehicle in accordance with § 55-4-111(b) and § 55-9-201(e), § 55-9-402(h), or § 55-9-414(g).

SECTION 6. This act takes effect July 1, 2025, the public welfare requiring it.